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CASE #	CASE NAME	HEARING NAME
CVRI2300147	MCCOY. vs FLEETWOOD ALUMINUM PRODUCTS, INC.	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling: The hearing on this matter is continued to July 23, 2026, at 8:30 a.m.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400354	EMERGENCY MEDICAL OFFICE, INC. vs AYOBİ, INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling: The Court GRANTS, in part, and DENIES, in part, Defendant Ayobi and Ayobi Inc.'s Motion for Attorney's Fees and Costs. The Court awards fees to Defendants at an hourly rate to \$600, resulting in a lodestar of \$33,900 for 56.5 hours, and fees as requested in the amount of \$450, all to be paid within thirty days of this Order.

In moving for fees and costs, Defendants refer the Court to attorney Lennemann's Declaration, ¶¶ 9-17, asserting that 56.5 hours were expended in this matter at a "reasonable" hourly rate of \$1,200. Additionally, per ¶18, Defendants state that they reasonably incurred costs in the amount of \$450.

It is undisputed that (1) Plaintiff executed they Settlement Agreement and Mutual Release of Claims Agreement; (2) that the Agreement contains a reciprocal prevailing party attorney's fee provision; (3) that Plaintiff failed to make either payment required by the Agreement and failed to respond to Defendants' attempts at informal resolution (both pre and post-Judgment); (4) that Defendants prevailed on its Breach of Contract claim at Trial; and (5) that the Court entered Judgment awarding Defendants damages, prejudgment interest, attorney's fees "Per Motion," and costs "Per Cost Bill."

A. CCP § 664.6 is not the only mechanism to enforce the Agreement

In the Opposition, Plaintiff contends that Defendants should have proceeded exclusively through CCP § 664.6 because the Agreement was written and signed. Therefore, Plaintiff's argument that virtually every attorney task performed after the filing of the Cross-Complaint was unnecessary fails. Nothing in Section 664.6 provides that it is the exclusive method for enforcing a settlement agreement. The issue before this Court is not whether another procedural option may also have existed. The issue is whether the legal services reflected in counsel's billing records were reasonably incurred in successfully enforcing the Agreement. And they appear to have been.